**IN THE CIRCUIT COURT '10 OF GHANA, ACCRA, HELD THIS WEDNESDAY THE 30TH DAY OF APRIL, 2025 BEFORE HER HONOUR EVELYN E. ASAMOAH (MRS)**

**CASE NO. D21/820/2023**

**THE REPUBLIC**

**VRS**

**DANIEL BORLABIE @ MR ABII**

CHIEF INSPR BENSON BENNEH FOR THE REPUBLIC

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**JUDGMENT**

● Mr. Bolarbie is accused of possessing gas cylinders, water pumps, televisions, electric meters, and other items, which he knew were unlawfully obtained through stealing. He was charged with dishonestly receiving, contrary to section 147(1) of the Criminal and Other Offences Act, 1960, Act 29. He denied the offence.

● The facts presented by the prosecution are as follows: The accused is a bicycle mechanic. The parties reside in Nugua. On 2nd July 2, 2023, thieves broke into the complainant's room and stole his LG Gram laptop, an 8 kg gas cylinder, two ladies' bags, a pink Ecolac bag containing his personal belongings, a rice cooker, and a Techno Spark 9 mobile phone. On 5th June 5, 2023, the complainant's wife visited the accused's mechanic shop of the accused and saw her 8 kg gas cylinder displayed there for sale. The witness negotiated and purchased the cylinder for GHC 250. The witness informed the police, resulting in the accused's arrest. A search was conducted at the accused's shop, where the following items were discovered: five 8 kg gas cylinders, ten 16 kg gas cylinders (five of which were filled with LPG), three water pumps, a 32-inch Amcon television, one

Skyworth television, and thirty-two brand-new plastic electrical meter boxes. The accused admitted the offence during the investigation and mentioned some metal scrap dealers as his source of supply. Efforts are underway to apprehend the suspects.

● The prosecution bore the legal burden to prove its case beyond reasonable doubt. In the case of ***Derick Adu-Gyamfi vs. The Attorney-General*** [2023] DLHC16660 -Justice Ackah-Yensu JSC stated:

> *"The common law presumption acknowledged among the comity of nations and given constitutional recognition in our legal system, that a person charged with a criminal offence be presumed innocent until he admits his guilt or his guilt is otherwise proven by the prosecution beyond reasonable doubt, is pivotal to the instant suit. … The function of the courts in a democracy to decide who is culpable of a criminal offence and therefore deserves to suffer sanction for the crime is a cornerstone of our Constitution so there can be no justification whatsoever for the legislature to mete out sanctions to any person who has only been charged with a criminal offence without a determination of her culpability by the courts..."*

***Sections 146 and 147 of the Criminal and Other Offences Act, 1960- Act 29*** state:

*146. Dishonestly receiving property*

> *A person who dishonestly receives property which that person knows has been obtained or appropriated by a criminal offence punishable under this Chapter commits a criminal offence and is liable to the same punishment as if that person had committed that criminal offence.*

*147. Dishonestly receiving*

> *(1) A person commits the criminal offence of dishonestly receiving property that the person knows to have been obtained or appropriated by a criminal offence, if that person receives,*

*buys, or assists in the disposal of the property otherwise than with a purpose to restore it to the owner*

● The prosecution called three witnesses: the complainant, his wife, and the police investigator. The complainant testified that on 2nd June 2023, he woke up to find his door broken and his belongings stolen. The thief created a path through the trap door to unlock it, then opened the main door to access the room. His gas cooker, rice cooker, brand new LG laptop, two handbags, one Eco-loc bag, and phone were stolen.

The complainant's wife testified that she was at work when her husband informed her of the theft, so she came home and confirmed what had happened. She reported the case at the police station, where the investigator provided her with an informant to assist in the search for the stolen items. She accompanied the informant to the accused's bicycle repair shop, where cylinders and home appliances are sold. She requested a cylinder, and the accused brought out two cylinders, where she identified one as hers. She paid GHc 250 for her cylinder and took it to the police station. The investigator then proceeded to the shop and arrested the accused person.

The investigator contended that investigations revealed the accused had been purchasing items from criminals who steal from the public. The accused was arrested with 15 gas cylinders, three water pumps, one Skyworth television, one Amcon television, 18 brand new plastic trunks, five extension cords, a toolbox, and 11 bulbs. During the investigation, the accused was asked to provide documents or receipts for the various items retrieved from the shop, but he failed to do so, stating that he had purchased some from scrap dealers and that others belonged to other people.

● The accused, in his caution statement, indicated that he bought most of the items retrieved from his shop from scrap dealers. He stated: *"I bought the cylinder from one boy at Nugua yesterday, 04/06/23. He sold it to me for GHC200. I know that boy very well, but it's*

*unfortunate I do not know his name. I also sold it to one lady at a cost of GHC 250 today, 5/6/23. All the other cylinders the police found at my shop were sold to me by scrap dealers. The televisions found in the shop also belong to one repairer called Kofi, who is in the same area where I was arrested. The water pumps were also bought from scrap dealers. One of the water pumps belonged to a Nigerian national who was returning to his hometown in Nigeria, and he sold it to me. The meter boxes that were found in the shop were given to me by some scrap dealers in the area; the bags found at the shop belong to me… the extension boards found in the shop were also sold to me by the scrap dealers…"*

● After the prosecution's case was closed, the court ruled that a prima facie case had been established and called upon the accused to open his defence.

In **Atsu v The Republic [1968] GLR 717**, Ollennu J.A. (as he then was) stated:

> *As a general rule, evidence from the defence is not taken until the court has held that the prosecution has established a prima facie case. This is based upon the well-known principle that it is the prosecution which has an onus to prove the guilt of the person they accuse of an offence, and not the accused who should establish his innocence, the accused should therefore not show his hands until the need arises … Again, when a defendant gives evidence the correct practice is that he should do so before any other witness who is called on his behalf:*

● In this case, the accused opted to give oral testimony and stated as follows: My name is Daniel Borlabie Bortekwei. I live in Nungua. I am a bicycle repairer as well as a scrap dealer. I buy items for resale, and when they are faulty, I repair them before selling. There is a TV repairer close to my shop to whom I usually give faulty TVs that I buy for repairs, so I can resell them. Also, when I purchase gas cylinders that are not neat, I respray them for sale. I also have pumping machines, one of which I bought from Konkonba and the other from a Nigerian man who was relocating. I do not buy stolen items, but I deal in scrap. If the complainant had informed me that the cylinder she wanted to buy was her

stolen cylinder, I would have pointed out the gentleman who sold it to me because he was still around, but they just handcuffed me and took me away. They also took my belongings. "

● This is an excerpt of what transpired during the prosecution's cross-examination of the accused.

> ***Q:*** *I am putting it to you that the 8kg cylinder belonging to the complainant contained gas, and you still went ahead and bought it?*
>
> ***A:*** *There was gas in the cylinder, but I am not sure if that is the cylinder I bought from the boy, because at the time, there were two cylinders at the shop.*
>
> ***Q:*** *You will agree with me that a cylinder containing gas, as you have admitted before the court, cannot be considered as a scrap, as you want the court to believe?*
>
> ***A:*** *I bought it from the scrap dealers; there were three cylinders, and the complainant chose one of them.*

This evidence demonstrates that the gas cylinders in the accused's possession contained LPG and cannot be described as scraps, as the accused claimed. The complainant identified one of the cylinders as part of the items stolen from the room. The accused attempted to change the identification mark/nod of the cylinder to prevent the owner from recognizing it, but was stopped from doing so. This further reveals that the accused was aware at all times that the subject matter he obtained was stolen property.

● **In *Hammah Mohammed V. The Republic*** [2020] DLCA10036 - SUIT NO.: H2/01/2020 Court of Appeal - Justice **Poku-Acheampong, J.A (as he then was) stated:**

> *"…the doctrine of recent possession in this respect as explained by P. K. Twumasi in his work cited supra. The doctrine posits that if a person is found to be in possession of any*

*property which has recently been stolen and he is unable to given any satisfactory explanation as to how he came by it, he will be presumed guilty of dishonestly receiving the property. The fact that the object was stolen and later found in the possession of the accused raises a presumption that he was aware of the unlawful circumstances under which the object left its owner. The accused must then explain how he came by the said object. To secure acquittal, the explanations offered by the accused must be capable of raising a reasonable doubt against his presumed guilty knowledge. Guilty knowledge may be inferred from the testimony of the accused, the confession of the accused, or surrounding circumstances. In R v. Braimah [1943] 9 WACA, cited by Counsel for the Respondent, guilty knowledge was inferred from the fact that the accused took the goods to his brothers to be sold at any price which they deemed fit. In Gfeller vrs The King [1942] WACA 12, guilty knowledge was inferred from the fact that the goods were sold at incredibly low prices…"*

● The complainant's item was discovered in the possession of the accused a few days after being stolen. The accused indicated that he bought the items from scrap dealers. In another breath, he stated that he purchased them from individuals in his neighborhood, but he failed to call those people to testify. As noted, the items found in his possession, including the gas cylinders containing LPG, cannot be described as scraps, as asserted by the accused. He knew these items were stolen goods, which he had received and was offering for sale at low prices. The court finds that the accused dishonestly received the stolen items. The prosecution proved its case beyond reasonable doubt. The accused is hereby convicted of the offence.

**Plea in mitigation** – I plead with the court to temper justice with mercy and give me a non-custodial sentence. I have been appointed as head of family and I am well known in the Nungua Township. I buy the items, refurbish them to make ends meets.

**Sentence**

Accused is sentence to pay a fine of 400 penalty units or in default 60 days imprisonment.

**(SGD)**

**H/H EVELYN E. ASAMOAH (MRS)**

**CIRCUIT COURT JUDGE**